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State/Territory Name: Delaware

State Plan Amendment (SPA) #: 25-0010

This file contains the following documents in the order listed:

- 1) Approval Letter
- 2) Form CMS-179
- 3) Approved SPA Pages



Medicaid and CHIP Operations Group

November 25, 2025

Andrew Wilson
Medicaid Director
Division of Medicaid and Medical Assistance
Delaware Health and Social Services
P.O. Box 906
New Castle, DE 19720-0906

Re: Delaware State Plan Amendment (SPA) - 25-0010

Dear Medicaid Director Wilson:

The Centers for Medicare & Medicaid Services (CMS) reviewed your Medicaid State Plan Amendment (SPA) submitted under transmittal number (TN) 25-0010. This amendment proposes to update the Division of Medicaid and Medical Assistance (DMMA) Title XIX Medicaid State Plan regarding Buy-In, specifically, to provide clarity that DMMA accretes clients to the Buy-In for Part A, as needed, and Part B for all Medicaid programs where a client is dually eligible for Medicare and Medicaid.

We conducted our review of your submittal according to statutory requirements in Title XIX of the Social Security Act. This letter informs you that Delaware's Medicaid SPA TN 25-0010 was approved on November 25, 2025, effective September 2, 2025.

Enclosed are copies of Form CMS-179 and the approved SPA pages to be incorporated into the Delaware State Plan.

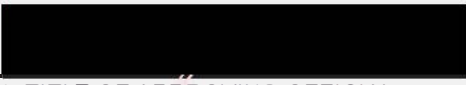
If you have any questions, please contact Taneka Rivera at (410) 786-9502, or via email at Taneka.Rivera@cms.hhs.gov.

Sincerely,

A black rectangular box redacting the signature of Wendy E. Hill Petras.

Wendy E. Hill Petras, Acting Director
Division of Program Operations

Enclosures

TRANSMITTAL AND NOTICE OF APPROVAL OF STATE PLAN MATERIAL FOR: CENTERS FOR MEDICARE & MEDICAID SERVICES		1. TRANSMITTAL NUMBER <u>2 5 — 0 0 1 0</u>	2. STATE <u>DE</u>
		3. PROGRAM IDENTIFICATION: TITLE OF THE SOCIAL SECURITY ACT ☒ XIX ☐ XXI	
TO: CENTER DIRECTOR CENTERS FOR MEDICAID & CHIP SERVICES DEPARTMENT OF HEALTH AND HUMAN SERVICES		4. PROPOSED EFFECTIVE DATE <u>09/02/2025</u>	
5. FEDERAL STATUTE/REGULATION CITATION <u>42 CFR 407.40, 1843 & 1818(g) of the SSA</u>		6. FEDERAL BUDGET IMPACT (Amounts in WHOLE dollars) a. FFY <u>2025</u> \$ <u>0</u> b. FFY <u>2026</u> \$ <u>0</u>	
7. PAGE NUMBER OF THE PLAN SECTION OR ATTACHMENT <u>General Program Administration and Table of Contents pages 29-29b 29a-29b</u>		8. PAGE NUMBER OF THE SUPERSEDED PLAN SECTION OR ATTACHMENT (if Applicable) <u>General Program Administration and Table of Contents pages 29-29b 29a-29b</u>	
9. SUBJECT OF AMENDMENT <u>Buy-In</u>			
10. GOVERNOR'S REVIEW (Check One) ☒ GOVERNOR'S OFFICE REPORTED NO COMMENT ☐ COMMENTS OF GOVERNOR'S OFFICE ENCLOSED ☐ NO REPLY RECEIVED WITHIN 45 DAYS OF SUBMITTAL ☐ OTHER, AS SPECIFIED:			
11. SIGNED BY  1 Andrew Wilson		15. RETURN TO Andrew Wilson, Director, DMMA, P.O. Box 906 New Castle, DE 19720	
13. TITLE Director			
14. DATE SUBMITTED 9/2/2025 10:01 AM EDT			
FOR CMS USE ONLY			
16. DATE RECEIVED 09/02/2025		17. DATE APPROVED November 25, 2025	
PLAN APPROVED - ONE COPY ATTACHED			
18. EFFECTIVE DATE OF APPROVED MATERIAL 09/02/2025		19. 	
20. TYPED NAME OF APPROVING OFFICIAL Wendy E. Hill Petras		21. TITLE OF APPROVING OFFICIAL Acting Director, Division of Program Operations	
22. REMARKS Box 7 and Box 8 Delaware authorized a pen and ink change on 11/25/2025.			

STATE PLAN UNDER TITLE XIX OF THE SOCIAL SECURITY ACT

STATE/TERRITORY: **DELAWARE****Citation**

Sections 1843 and 1818(g), of
the Act; 42 CFR 407.40(b)

Sections 1902(a)(10)(E)(i)
and 1905(p)(1) of the Act;
42 CFR 435.123 and 400.200

Section 1818(g) of the Act;
42 CFR 406.26

42 CFR 406.32(g)

Section 1902(a)(10)(E)(ii)
of the Act;
42 CFR 435.126

Section 1843 of the Act;
42 CFR 407.42

42 CFR 435.120, 435.121;
435.130, 435.232; and
435.234

3.2 Coordination of Medicaid with Medicare and Other Insurance

X__ The Medicaid agency has a buy-in agreement with CMS under which it agrees to cover Medicare premiums for Medicare-eligible individuals enrolled in certain Medicaid eligibility groups selected by the Medicaid agency below. The SPA pages that follow represent the entirety of the buy-in agreement and bind the state to follow federal regulations and guidance promulgated under these provisions.

(a) Medicare premiums

(1) Medicare Part A premiums

(i) Qualified Medicare Beneficiary (QMB) Group:

The Medicaid agency pays the Medicare Part A premiums (if applicable) for individuals in the QMB eligibility group as defined in the QMB pages of this plan using the following:

X__ Buy-in agreement that pays the Part A premiums for individuals entitled to Medicare Part A and/or enrolled in Part B.

 Group payer arrangement

(ii) Qualified Disabled and Working Individuals (QDWI) Group

X__ The Medicaid agency pays Part A premiums under a group payer arrangement, subject to any contribution required as described in the QDWI pages of this plan.

(2) Medicare Part B Premiums

The Medicaid agency includes the following Medicaid eligibility groups in its buy-in group:

X__ Mandatory cash assistance and deemed recipients of cash assistance groups:

(i) Individuals who receive SSI or SSP or both and are covered under this plan as categorically needy.

TN No. SPA# 25-0010

Supersedes

TN No. SP# 409

Approval Date: November 25, 2025

Effective Date: September 2, 2025

STATE PLAN UNDER TITLE XIX OF THE SOCIAL SECURITY ACT

STATE/TERRITORY: **DELAWARE****Citation**

Sections 1619(b) and
1634(c) of the Act; 42 CFR
435.134, 435.135, 435.137,
and 435.138

Section 1931(b) of the Act;
42 CFR 435.145

42 CFR 435.4

1902(a)(10)(E)(i) and
1905(p)(1) of the Act; 42
CFR 435.123 and 400.200

Sections 1902(a)(10)(E)(iii)
and 1905(p)(3)(A)(ii) of the
Act; 42 CFR 435.124

Sections 1902(a)(10)(E)(iv)
and 1905(p)(3)(A)(i) of the
Act, 42 CFR § 435.125

Section 1905(a) of the Act

(ii) Individuals who under the Act or any other provision of federal Law are treated, for Medicaid eligibility purposes, as though they were receiving SSI or SSP and are covered under this plan as categorically needy.

 X Optional deemed recipients of cash assistance groups:

Individuals whom the State must consider to be recipients of AFDC, including those who receive adoption assistance, foster care or guardianship care under part E of title IV of the Act.

 X Medicare Savings Programs groups:

(i) Individuals in the QMB eligibility group as defined in the QMB pages in this plan.

(ii) Individuals in the Specified Low-Income Medicare Beneficiary (SLMB) eligibility group as defined in the SLMB pages in this plan.

(i) Individuals in the Qualifying Individual (QI) eligibility group as defined in the QI pages in this plan.

 X All other Medicaid eligibility groups. All other individuals eligible for Medicaid under Title 19 of the Act.

(a) Other Health Insurance

The Medicaid agency pays insurance premiums for medical or any other type of remedial care to maintain a third-party resource for Medicaid covered services provided to eligible individuals (except individuals 65 years of age or older and disabled individuals, entitled to Medicare Part A but not enrolled in Medicare Part B). (See attachment 4.22-C for methods of determining cost-effectiveness.).

TN No. SPA#-25-0010

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